

December 18, 2009



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety Administration**

East Building, PHH – 30
1200 New Jersey Avenue, Southeast
Washington, D.C. 20590

DOT-SP 11197
(NINTH REVISION)

(FOR RENEWAL, SEE 49 CFR § 107.109.)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of restricted quantities of hazardous materials that are authorized for exception in column A of 49 CFR Table 172.101, excluding Class 1, Class 7 and Divisions 6.1 and 6.2. Shipments of these materials are exempt from shipping paper and marking requirements when transported in private carriage and in accordance with the conditions specified in this special permit. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR Part 172, Subparts C and D except § 172.312, and except as prescribed herein.
5. BASIS: This special permit is based on the Pipeline and Hazardous Materials Safety Administration's (PHMSA) editorial review under § 107.121 initiated on December 4, 2008.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Materials authorized for exception in column 8A of 49 CFR Table 172.101*, except Class 1, Class 7 and Division 6.1 and 6.2 materials.	As appropriate	As appropriate	II and III

* No Packaging Group I materials are authorized.

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Prescribed packagings are combination packagings made of rigid plastic or metal with a secure closure mechanism meeting the following limitations:

i. Inner packagings for liquid hazardous material are limited to 1 liter net capacity.

ii. Inner packagings for solids hazardous material are limited to 1 kilogram net capacity.

iii. No more than 2 liters or 2 kilograms total of any one hazardous material may be transported in one vehicle, regardless of how the material is subdivided.

iv. Each package must conform to the packaging requirements of §§ 173.24 and 173.24a.

b. MARKING - Each package must be marked as follows:

i. With the company name, address, a 24-hour emergency response phone number and the statement "Contains Chemicals - DOT-E 11197" in letters at least one inch high on a contrasting background.

ii. As required by § 172.312.

c. OTHER CONTROL MEASURES - The maximum gross weight of the packages authorized by this special permit must not exceed 60 kg (132 pounds) per vehicle.

8. SPECIAL PROVISIONS:

a. Packages may only be transported in vehicles operated by employees or persons subject to this special permit.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle (private carrier).10. MODAL REQUIREMENTS: A current copy of this special permit must be carried in each motor vehicle used to transport packages covered by this special permit.11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101, et seq.:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8 who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when the special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—"The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

December 18, 2009

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Dr. Magdy El-Sibaie

Acting Associate Administrator for Hazardous Materials Safety
Address all inquiries to: Associate Administrator for Hazardous
Materials Safety, Pipeline and Hazardous Material Safety
Administration, U.S. Department of Transportation, East Building
PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C.
20590.

Copies of this special permit may be obtained by accessing the
Hazardous Materials Safety Homepage at
http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm
Photo reproductions and legible reductions of this special permit
are permitted. Any alteration of this special permit is
prohibited.

PO: sln